

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

**2025PRTR052713: IN RE THE GUDFINNA WILLIS LIVING TRUST ESTABLISHED
JANUARY 12 1995**

07/22/2026 in Department J6

**Hearing on Petition to Confirm Validity of Trust, Confirm Successor Trustee and for
Order Transferring Decedent's**

The Court intends to deny the petition for the following reasons.

First, the petition and the supplements filed fail to demonstrate that the real property asset at issue, 255 Sequoia Court, #14, Thousand Oaks, was ever declared to be an asset of the Trust. The Trust recites on page one that “Gudfinna Willis, hereinafter called ‘Trustee,’ declares that Gudfinna Willis, hereinafter called ‘Settlor,’ has transferred to the Trustee without consideration certain property that will initially constitute the Trust Estate.” What property this is is not identified. There is no schedule of assets for the Trust, and there is also no language in the Trust stating that any property listed in a schedule of assets has been conveyed to the Trust. Petitioner admits that there is no deed transferring the asset to the Trust. Under these facts, the settlor’s alleged intent and mistaken beliefs are not sufficient grounds to determine that the property was made a trust asset. (*Estate of Eimers v. Eimers* (2020) 49 Cal.App.5th 97, 105 [donor’s intent alone does not trump the requirements of the law].) *Estate of Heggstad* (1993) 16 Cal.App.4th 943 also does not stand for such a proposition.

Second, the Trust at page 33 provides: “Nevada law shall govern the validity, construction, interpretation, and administration of all trusts under this instrument.” Petitioner relies only on California authorities in arguing that despite the settlor’s failure to convey the real property asset to the Trust, the Court should find it to be a trust asset. No applicable Nevada statute or caselaw that is similar to the *Heggstad* case is cited in support of her arguments.

Third, to date, Petitioner has not provided a verification of the original petition.

Fourth, Petitioner asks the Court to apply equitable remedies such as constructive trust or resulting trust but such remedies are unavailable under the facts. For example, regarding the remedy of constructive trust, “[o]ne who gains a thing by fraud, accident, mistake, undue influence, the violation of a trust, or other wrongful act, is, unless he or she has some other and better right thereto, an involuntary trustee of the thing gained, for the benefit of the person who would otherwise have had it.” (Civ. Code, § 2224.) The remedy of constructive trust has

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no application here, where there is no one alleged to have acquired the real property by fraud or other wrongdoing.

For all of the foregoing reasons, the Court will deny the petition. As stated at the last hearing, no further continuances will be granted.